

		vacating the Clerk's Entry of Default entered on January 5, 2026. Unopposed Motion is granted pursuant to CCP§473, CCP§ 425.11. Defendant to answer the Complaint within 30 days from service of this Court's notice of ruling. [CCP § 412.20(a)(3).] Plaintiff to give notice.
107	Bensalem vs. Mobilitas Insurance Company 26-01558997	1. Motion for Order to Stay Proceedings Respondent Mobilitas Insurance Company moves to stay arbitration proceedings pending resolution of respondent Petitioner Imed Bensalem's occupational accident insurance claim. For the reasons set forth below, the motion is DENIED. Mobilitas has failed to provide any evidence or authority to show the court has the power to grant the requested relief in this case. Furthermore, the Court grants Petitioner's motion to compel arbitration, which is being heard concurrently with this motion. As noted in this Court's ruling on that motion, Insurance Code section 11580.2, subdivision (f), states, "If the insured has or may have rights to benefits, other than nonoccupational disability benefits, under any workers' compensation law, the arbitrator shall not proceed with the arbitration until the insured's physical condition is stationary and ratable. In those cases in which the insured claims a permanent disability, the claims shall, unless good cause be shown, be adjudicated by award or settled by compromise and release before the arbitration may proceed." (Emphasis added.) As such, section 11580.2, subdivision (f), specifies what the arbitrator shall and shall not do. It makes no mention of the Court staying any arbitration proceedings. Whether to proceed would seem to be an

	issue reserved to the arbitrator. (See Briggs v. Resolution Remedies (2008) 168 Cal.App.4th 1395, 1400-1401.) Accordingly, the motion is DENIED. Petitioner to give notice. 2. Motion to Compel Arbitration Petitioner Imed Bensalem moves to compel respondent Mobilitas Insurance Company (“Mobilitas”) to arbitrate petitioner’s claims for damages arising out of a June 23, 2024 motor vehicle collision with a third-party driver. Petitioner further requests and award of attorney fees incurred in connection with this motion. Petitioner was acting as a Lyft driver at the time of the incident and claims to have suffered injuries as a result. Petitioners contend that Mobilitas must proceed to arbitration pursuant to a written Uninsured Motorist Policy with Lyft, Inc., which insured rideshare drivers such as petitioners. The parties do not dispute that there is an enforceable agreement to arbitrate that applies to petitioner’s claims against Mobilitas for coverage under the Mobilitas Uninsured/Underinsured Motorist Policy. The parties also do not dispute that, in addition to the Mobilitas policy, petitioner was also insured as a Lyft driver under an Occupational Accident Insurance (“OAI”) policy administered by Blue Star Claims LLC and underwritten by U.S. Fire Insurance Company. Mobilitas oppose the motion on the grounds that the matter is not yet ripe for arbitration. Mobilitas argues that it is entitled to reduce petitioner’s recovery for any amount paid under any worker’s compensation law, including occupational accident insurance benefits. Per Mobilitas, in order to prevent double recovery, Insurance Code section 11580.2(f) expressly permits insurers to delay arbitration of underinsured motorist claims while a worker’s compensation claim is pending, absent good cause. Staying the uninsured
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		motorist arbitration is the only way to prevent double recovery or a bad faith resolution between the Occupational Accident Insurance carrier and claimant, to prevent conflicting findings of law and fact, and to compel a good faith tender of the claim by the claimant to the Occupational Accident Insurance carrier. Further, because both California law and the Mobilitas policy expressly provide that Mobilitas may offset any UIM payment by the amount of the Occupational Accident Insurance payout, Mobilitas must necessarily know the final amount of the Occupational Accident Insurance payout prior to the UM/UIM arbitration. Business & Professions Code section 7455(a) provides that network companies operating in California must provide, for the benefit of app-based drivers, occupational accident insurance to cover medical expenses and lost income resulting from injuries suffered while the app-based driver is online with a network company's online-enabled application or platform. Subdivision (e) provides that any benefits provided under subdivision (a) "shall be considered amounts payable under a worker's compensation law . . . for the purpose of determining amounts payable under any insurance provided under Article 2 (commencing with Section 11580) of Chapter 1 of Part 3 of Division 2 of the Insurance Code." Section 11580.2(f) of the Insurance Code in turn provides, in relevant part: "If the insured has or may have rights to benefits, other than nonoccupational disability benefits, under any workers' compensation law, the arbitrator shall not proceed with the arbitration until the insured's physical condition is stationary and ratable." Subdivision (h)(1) further provides that any loss payable under the terms of an uninsured motorist endorsement may be reduced by the amount paid under any workers' compensation law, exclusive of nonoccupational disability benefits. While Mobilitas argues that arbitration between it and petitioner should be stayed until resolution of
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		petitioner's OA claims because Mobilitas is entitled to reduce any payment to petitioner by the amount paid by Blue Star, Mobilitas does not dispute that petitioner's claim under its policy should be arbitrated pursuant to the policy's terms. However, Mobilitas' right to offset any payments to petitioner based on amounts paid by Blue Star is a defense that Mobilitas may raise in arbitration. Mobilitas' right to any offset does not preclude this Court from compelling Mobilitas to arbitration. If Mobilitas believes arbitration should be stayed until the proper amount of an offset can be calculated, Mobilitas may raise the argument with the arbitrator. In light of the above, the Motion to Compel Arbitration is GRANTED. Petitioner's request for attorney fees is DENIED. The authorities cited by Petitioner do not support such an award in connection with a motion to compel arbitration. A Status Conference re: Arbitration is set for February 23, 2027 at 9:30 a.m. in Department C25. Petitioner to give notice.
108	Barkley vs. H-Mart Supermarket 25-01461644	Plaintiff Brent Barkley moves for leave to file an amended complaint. For the reasons set forth below, the Motion is DENIED. Plaintiff previously filed a motion for leave to amend for hearing on April 6, 2026. That prior motion was denied because there was no proof of service, Plaintiff erroneously cited to the Federal Rules of Civil Procedure, and the motion was not accompanied by any supporting declaration or proposed amended pleading. Plaintiff filed the instant motion on April 8, 2026. Again, there is no proof of service showing the moving papers were served on defense counsel. A proof of